

26AVCV00127 26AVCV00127

County: los-angeles

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Case Number: 26AVCV00127 Hearing Date: September 17, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

SHAREEMAH TIPLER, an individual
and as Guardian Ad Litem for TIBERIUS RAY, a minor,

Plaintiffs,

v.

ROLL LANCASTER LLC, a California
limited liability company; GATELY INDUSTRIES, INC., a California Corporation;
EARL GATELY, an individual; and DOES 1 through 10, inclusive,

Defendants.

Case
Number 26AVCV00127

[TENTATIVE]

RULING ON MOTION

Date
of Hearing: September 17, 2026

Dept. A-14

Judge William H.
Forman

I.
Background

Plaintiff Shareemah Tipler
("Plaintiff") moves for leave to file a First Amended Complaint ("FAC").

On January 26, 2026, Plaintiff
filed her Complaint as an individual and as Guardian Ad Litem for minor
Tiberius Ray ("Tiberius") against Defendants Roll Lancaster LLC ("Roll"),
Gately Industries, Inc. ("Gately Industries"), and Earl Gately ("Gately")
(collectively "Defendants"), asserting seven causes of action for (1)
Collection of Rent on Substandard Dwelling (Civ. Code, § 1942.5), (2) Breach of
the Implied Warranty of Habitability, (3) Breach of the Covenant of Quiet
Enjoyment, (4) Negligence, (5) Violation of Los Angeles Municipal Code § 45.33,
(6) Negligence Per Se, and (7) Retaliatory Eviction.

The Complaint alleges that
Plaintiff has been a bona fide tenant residing at the real property located at
841 West Avenue J-9, Lancaster, CA 93534 (the "Property"), which is owned,
leased, and/or managed by Defendants. (Compl., ¶ 2.) Plaintiff alleges a number
of substandard living conditions existed on the Property, including exposure to
raw sewage, sewage vapors, plumbing failures, and unsanitary conditions
exposing Plaintiff and her minor children to health and safety risks, resulted
in medical symptoms, and required medical evaluation and treatment. (Compl., ¶
3-4.) Plaintiff also alleges that her minor child, two year old Ray, was also
diagnosed with Rhino Virus multiple times after exposure to said conditions on
the Property, and Plaintiff and her children had to reside in hotels elsewhere after
medical providers advised the environmental exposure and unsanitary living
conditions posed heightened risks to Plaintiff's condition and to Ray's respiratory
health. (Compl., ¶¶ 4-5.)

On March 23, 2026, Gately and
Gately Industries filed their Answer.

On May 29, 2026, following a CMC, the Court referred the parties to mediation, to be completed by December 4, 2026.

On August 6 and 13, 2026, the Court granted Orders for Appointment of Plaintiff as Guardian Ad Litem for minor children Tyson Ray ("Tyson"), Tyrone Butterfield ("Tyrone"), and Tobias Ray ("Tobias").

On August 18, 2026, Plaintiff filed her Motion for Leave to File an FAC. The motion is unopposed.

II. Legal Standard

Standard for Leave to Amend Complaint – Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." This discretion should be exercised liberally in favor of amendments, for "judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

"The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court's denial of leave to amend are rare." (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) However, "[a]lthough courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citation], this policy should be applied only '[w]here no prejudice is shown to the adverse party . . . [Citation.] A different result is indicated '[w]here inexcusable delay and probable prejudice to the opposing party' is shown. [Citation.]" (*Magpali v. Farmers Group, Inc.* (1996)

48 Cal.App.4th 471, 487.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend." (Morgan v. Superior Court of Los Angeles County (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

Under rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

Under subdivision (b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Id., subd. (b).)

III.

Discussion

Application – Plaintiff

moves for leave to file an FAC pursuant to Code of Civil Procedure sections 473, subdivision (a)(1) and 576 on the grounds that Plaintiff seeks to effect the following amendments to the Complaint: (1) add three additional minor Plaintiffs, Tyson, Tobias, and Tyrone, each already identified in the Complaint as members of the household residing at the Property and whose claims arise from the same course of conduct already alleged, (2) correct the properly registered legal name of Defendant Role Lancaster LLC, which was inadvertently misspelled in the Complaint's caption, (3) correct a typographical error in the

First Cause of Action as arising under Civil Code section 1942.5 when it in fact arises under Civil Code section 1942.4, (4) remove the Fifth Cause of Action for Violation of the Los Angeles Municipal Code section 45.33, which does not extend to real property located in the City of Lancaster, and (5) consolidate the stand-alone Sixth Cause of Action for Negligence in recognition that negligence per se operates as an evidentiary presumption under Evidence Code section 669 rather than an independent cause of action. (Motion, p. 2:11-25.)

Plaintiff has substantially complied with California Rules of Court rule 3.1324, subdivision (a). Plaintiff has provided a copy of the proposed FAC, which is serially numbered as the "First Amended Complaint," and states what allegations and contents in the Complaint are to be modified, added, and deleted. (Grigoryan Decl., Ex. 1.) Plaintiff does not provide a redlined copy of the proposed FAC or identify exactly by page, paragraph, and line number the allegations to be amended, deleted or added. However, the motion and the Declaration of Chris Grigoryan, Esq. make clear to the Court and Defendants exactly what changes are proposed, and generally where such changes are located in the Complaint. The Grigoryan Declaration also puts forth all required information under Rule 3.1324, subdivision (b), specifying the effect of the amendment (Grigoryan Decl., ¶ 7), why it is necessary and proper (Grigoryan Decl., ¶¶ 8-12), when the facts giving rise to the amended allegations were discovered (Grigoryan Decl., ¶ 13), and the reasons why the request for amendment was not made earlier (Grigoryan Decl., ¶ 14).

Finally, as Plaintiff notes, Defendant Role Lancaster has not yet filed a responsive pleading, discovery is in its early stages and no cutoff has been set, no trial date has been set, no dispositive motions have been filed, and the case is in its very early stages. These amendments seek only to add named Plaintiffs already identified in the operative initial Complaint, causes of action on behalf of those Plaintiffs arising from the same course of conduct and facts underlying the Complaint, correct typographical errors to clarify existing causes of action, and to remove or consolidate existing causes of action asserted against Defendants. The Court also notes the motion is unopposed. Based on these circumstances and the amendments sought, there is no cognizable prejudice to any Defendant that would result from granting leave to amend.

Accordingly, Plaintiff's motion

is GRANTED. Plaintiff to file the proposed FAC within five (5) days of this Order.

IV.

Conclusion

Plaintiff Shareemah Tipler, individually and as Guardian Ad Litem for Tiberius Ray's Motion for Leave to File a First Amended Complaint is GRANTED.

Plaintiff shall file the proposed First Amended Complaint within five (5) days of this Order.